

25SMCV04824 25SMCV04824

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TENTATIVE RULING

July 30, 2026

25SMCV04824 (Steinberg, et.
al. v. Peterson, et. al.)

RELEVANT BACKGROUND

On September 16, 2025,
plaintiffs Gail Steinberg (Steinberg) and Alexa Jacobs f/k/a/ Alexa Steinberg
(Jacobs) (collectively, Plaintiffs) filed their complaint against defendants
Diane Peterson (Peterson), Bernard Alexander (Alexander), and Does 1-100 (collectively,
Defendants). Plaintiffs allege two causes of action: (1) fraud and deceit
(suppression of fact); and (2) intentional misrepresentation.

On or about November 3,
2022, Plaintiffs became the owners of a condominium unit located at 26664
Seagull Way, Unit A121, Malibu, California, County of Los Angeles (Unit A121 or
the Property). (Compl. ¶ 4.) Unit A121 is located in the Tivoli Cove
condominium complex at 26664 Seagull Way, Malibu, California (Tivoli Cove).
(Id.) David Storrs (Storrs) was the prior owner of the Property. (Id. ¶ 9.)

Plaintiff alleges that Alexander served on the
Tivoli Cove HOA Board. (Id. ¶ 6.) In such capacity, he had access to and
knowledge of information regarding the condition of Tivoli Cove and potential
work that would be needed that would result in future assessments. (Id. ¶ 25.) Plaintiff
further alleges that, notwithstanding that Alexander was privy to and had

knowledge of the many repairs that were being discussed by Tivoli Cove HOA, including studies, inspections, reports and estimates related to such work, when asked about these things he failed to disclose any of this information to Plaintiff. (Id.)

INSTANT MOTION

On April 8, 2026, Alexander filed the instant demurrer and motion to strike. Plaintiff filed an opposition. No reply has been filed.

MEET AND CONFER

The Court finds that Alexander has satisfied the meet and confer requirement. (Zumstein Decl. ¶ 1-9.)

REQUEST FOR JUDICIAL NOTICE

Alexander's request for judicial notice of the complaint in this action, although unnecessary, is granted.

DISCUSSION

I.

DEMURRER

Fraud and Deceit

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Lovejoy v. AT&T Corp. (2004) 119 Cal.App.4th 151, 157–158.)

A duty to disclose arises when "[1]

a defendant owes a fiduciary duty to a plaintiff ... [2] when the defendant has exclusive knowledge of material facts not known to the plaintiff; [3] when the defendant actively conceals a material fact from the plaintiff; or [4] when the defendant makes partial representations but also suppresses some material facts.” (Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199 [internal citations and quotation marks omitted; cleaned up].)

“Each of the [latter] three circumstances in which nondisclosure may be actionable presupposes the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise.” (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336–337.) “[S]uch a relationship can only come into being as a result of some sort of transaction between the parties.” (Id. at p. 337.) “Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (Ibid.)

Intentional Misrepresentation

“The elements of a cause of action for intentional misrepresentation are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) actual and justifiable reliance, and (5) resulting damage.” (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1166.)

The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) “[Fraud's] particularity requirement necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

To properly allege fraud against a corporation, the plaintiffs must plead the names of the persons allegedly making the false representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)

Here, Alexander argues that both the first and second causes of action fail because the Complaint does not allege facts showing that Alexander acted with the intent to induce Plaintiffs' reliance. Alexander contends that intent to induce reliance is an essential element of fraud, deceit by suppression, and intentional misrepresentation, and it must be pleaded with factual specificity.

In opposition, Plaintiffs highlight that Alexander's demurrer improperly isolates the single element of intent while ignoring the factual allegations establishing his knowledge, duty, and non-disclosure. Plaintiffs contend that, when the Complaint is read as a whole, it adequately states claims for fraud and intentional misrepresentation. The Court agrees with Plaintiffs.

The Court notes that no reply has been filed.

The Court finds that the Complaint alleges facts sufficient to state causes of action for fraud and intentional misrepresentation, including facts sufficient to warrant an inference of intent to induce reliance. The Complaint alleges that Alexander: served on the HOA Board in leadership roles; had access to and knowledge of material information regarding structural conditions and anticipated assessments; was specifically identified as the person to address Plaintiffs' inquiries regarding HOA conditions and assessments; and failed to disclose those material facts despite direct inquiry. (See Compl. ¶¶ 6, 25, 28, 38, 41, 48, 50-57, 69, 71-73, 76-82, 87-94.) The Complaint alleges that Alexander, a member of the HOA Board with superior exclusive knowledge of material structural issues and anticipated assessments, was specifically identified as the person to address Plaintiffs' inquiries and failed to disclose those facts. (Id.) As for particularity, the Complaint identifies: who (Alexander); what (failure to disclose material facts regarding structural issues and assessments); when (during escrow and prior to closing); and how (by remaining silent in response to direct inquiries despite knowledge of material facts). (Id.) The allegations in the Complaint are adequate at the pleading stage.

Accordingly, Alexander's demurrer to the first and second causes of action alleged in the complaint is OVERRULED.

II.

MOTION

TO STRIKE

Based

on the foregoing, Defendant's motion to strike is DENIED, as the Complaint alleges a cause of action for fraud.